Though it has been brought on record that the accused were interrogated by IB officials, no interrogation report whatsoever prepared by the IB was taken on record by him. Nor did he verify the allegations contained in the statements.

The accused, during questioning by the CBI, have stated that they were mentally and physically tortured during police custody as a result of which they had to make statements on suggested lines. The investigation also disclosed that accused Nambi Narayanan and Chandrasekhar were given medical treatment while in police custody on 3 December 1994 and 28 November 1994 respectively. However, the fact of medical treatment given to the accused has been suppressed from the case diaries and case records of DSP K K Joshwa.

Joshwa took no steps either to question Raman Srivastava or check the official records, which were available to ascertain the movements of Raman Srivastava. This again tantamount to dereliction of duty.

On the one hand, Kerala Police was suspecting espionage activities and, on the other hand, they delayed the conduct of house searches to recover incriminating documents, if any. This is clear from the fact that the house and office search of accused Sasikumaran at LPSC was conducted on 30 November 1994, in spite of the fact, that the accused has been arrested by them on 21 November 1994.

Similarly, though Nambi Narayanan was arrested on 30 November 1994, house search was not conducted till the case was handed over to the CBI on 4 December 1994.

The house search of Mohana Prasad (LPSC scientist) as mentioned in Siby Mathews's letter dated 16 December 1994 has not been reflected in the case records of K K Joshwa.

SIBY MATHEWS, DIG, CRIME